

GZ: 2024-0.112.476 dated September 26, 2024 (Case Number: DSB-D124.3492)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical information, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of the respondent has not been pseudonymized, as it is derived from the legal bases of the decision (in particular §§ 3 and 16a BStMG).]

DECISION

RULING

The

Data Protection Authority

decides

on

the

data protection complaint

of

A*** GmbH

(complainant) dated January 18, 2021 against ASFINAG Autobahnen- und

Schnellstraßen-Finanzierungs-Aktiengesellschaft (respondent), represented by B*** and C***

Rechtsanwälte GmbH, regarding a violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 16a, 19a et seq. Federal Act on Toll Collection on Federal Roads (Federal Roads Toll Act 2002 – BStMG).

REASONING

A. Submissions of the Parties and Procedural History

1.

In a submission dated January 18, 2021, improved by a submission dated March 11, 2021, the complainant essentially claimed a violation of the right to confidentiality and summarized that the violation was caused by the unlawful storage of each individual toll passage within the framework of the route toll. The route toll is based solely on a time-related billing basis. The individual passages are neither relevant for billing in terms of quantity nor in terms of timing. However, this type and extent of the stored data are suitable for creating very detailed movement profiles of a vehicle. In contrast, the digital vignette does not store any data, which shows that such storage is not necessary in any case. The complaint was accompanied by a time card for the license plate "AT Ü**4*X" for the period from January 6, 2020, to December 18, 2020.

The complainant also stated that the time card with the mentioned license plate was only one of many affected vehicles and that it was used only as an example. Furthermore, the storage of the data does not fall under the right according to § 16a para. 3 BStMG and thus the respondent also violates Art. 5 GDPR. In summary, this storage is not covered by any legal basis, does not limit itself to the necessary minimum, and is overall excessive and thus to be classified as unlawful.

2.

On April 16, 2021, the response of the respondent was submitted to the Data Protection Authority.

In it, the legally represented respondent summarized as follows:

Initially, the respondent stated that there are three different types of toll payment: the vignette, the truck toll (GO toll), and the route toll at issue here. This is set up for certain selected highway sections to collect the toll. The route toll is intended to refinance specific constructions (construction costs and special constructions), whereby one can choose between a single trip and an annual card. The route toll collects the passage time of a specific vehicle license plate at the respective control point. This

system has existed for many years, and so far, there have been no complaints regarding this data processing.

The respondent also stated that the complainant, as a legal entity – although § 1 DSG also applies to legal entities – only has certain partial rights. In this regard, the complainant cannot rely on the rights under the GDPR. The complainant is not harmed in personal data by camera-supported collection of transaction data, as the video surveillance cannot possibly violate the right according to § 1 DSG. This has already been stated by the DSB in GZ: DSB-D216.713/0006-DSB/2018.

The respondent makes punctual and isolated images of the license plate. The respondent has in any case based the data processing in question on predominantly legitimate interests. The confidentiality interests raised by the complainant, that a movement profile is recorded, are not the case, as only the time of entry and not of exit is recorded. The intensity of the intervention is also very low, as it is a punctual date and no data can be directly traced back to a person. Furthermore, the processing is limited to the necessary temporal extent and only the license plate is read. Additionally, the automated license plate recognition system is also in operation at garage and parking lot operations.

§ 16a para. 3 BStMG states that the respondent may collect necessary data of the trips made within the framework of the route toll and use it for billing. The collection of the relevant data is in any case necessary to be able to record the trips.

Furthermore, the respondent not only collects data based on statutory provisions but also processes it based on the interests of third parties. This is necessary for the verification of billing in case of complaints, for fraud prevention, concerning statistics on traffic (overview of usage), for inquiries from authorities (e.g., law enforcement), and as confirmations of passage for toll customers.

In summary, the balancing of interests has favored the interests of the respondent and third parties, as these clearly outweigh the others.

3.

Referring to the statement of the respondent, the complainant presented in her hearing on July 19, 2021, as well as in a supplementary submission on July 20, 2021, that during the automated control of the digital vignette, no such data is stored from anyone. Such data storage is not necessary.

Furthermore, it is irrelevant whether there have been similar complaints in the past or not. Additionally, she objects to being associated with a general suspicion of "toll evasion." In any case, the data storage concerning tolls that have not been properly paid must be clearly distinguished from the present complaint. In the specific case, the passage time is stored without any suspicion of unlawful behavior without justification.

Regarding the argument of the respondent that the complainant is a legal entity, she countered that a legal entity, due to lack of legal capacity, cannot possibly operate a motor vehicle. In this regard, all vehicle operators are affected; however, all vehicles are registered to the complainant. The complainant also fulfills her duty of care towards her employees as the management of a legal entity. The data collected by the respondent is certainly suitable for determining on which side of a tunnel vehicles are predominantly located, thus enabling "Section Control."

In garage and parking operations, the entrance is regularly checked regarding billing, whereas the number of uses of special toll routes is irrelevant in this case. In the present case, the passage control is solely aimed at a valid route toll, and the recorded/checked data can be discarded after verification, as is practiced with the digital vignette.

The argument of individual billing is not necessary for the storage of individual passages. The authorization for verification is not disputed; however, the automated processing over a longer period is contested.

Should a crime be mistakenly assumed, this would be manually checked in a service center; however, one cannot perform blanket storage without suspicion. The respondent also does not understand why the data is not stored anonymously.

The respondent's argument that authorities would make inquiries is refuted by the complainant in that this would not be possible without a judicial order.

Information from employees may also not be processed, as the vehicles are not registered to them, nor is the route toll paid by them, which is why they have no right to information.

In summary, the collection of data is legally covered; however, the storage is not, which leads to an EU-law-violating data retention that places everyone using time cards under general suspicion of criminal acts.

4.

In a letter dated December 27, 2022, the complainant requested information on the status of the proceedings.

5.

In a letter dated February 8, 2023, the data protection authority requested the respondent to answer supplementary questions and also informed the complainant of the status of the proceedings in a letter dated February 8, 2023.

6.

In a submission dated March 1, 2023, the respondent submitted a supplementary statement and initially stated that the data in question concerning the complainant is still being stored, but exclusively for documentation purposes and to safeguard legal claims in the proceedings and not for the purpose of processing the route toll. In the route toll systems, the data in question concerning the complainant has been deleted. Furthermore, the respondent detailed the functioning of the payment of the route toll fee and the technical facilities for control.

Finally, the respondent addressed the complainant's submissions, laid out the legal foundations for toll payment, and justified the necessity of storing passage data. The respondent also explained why there is no right of complaint for legal entities regarding video recordings and that an employer cannot assert the fundamental right to data protection of employees. Moreover, the respondent does not stick to the facts and assumes globally unlawful behavior or even a suspicionless data retention.

In summary, it follows that the respondent processes the data in the context of the route toll in accordance with legal requirements and that the complainant is not violated in her right to confidentiality according to § 1 DSG, as the allegations of the complainant are substantively incorrect.

7. In a letter dated May 9, 2023, the data protection authority granted the complainant the opportunity to be heard and requested the complainant to answer supplementary questions.

8. By submission dated May 29, 2023, the complainant submitted a counter-statement and answered the supplementary questions of the data protection authority. In summary, the complainant uses annual vehicle passes, which are purchased in advance for a flat fee. The respondent stores each individual passage regardless of the examination result and enables the creation of a movement profile for each annual pass holder. For annual passes, a fixed amount is paid in advance; the number of passages does not change the billing. The data collected is irrelevant to the respondent. The respondent contradicts itself regarding the provision of information and has admitted in the proceedings that data is transmitted to the tax authorities several times a month upon their request. The complainant also requested that the unlawful behavior of the respondent be recognized and that an appropriate administrative fine be imposed on the respondent due to the vast amount of data collected.

9. By letter dated September 5, 2023, the data protection authority requested the respondent to answer supplementary questions and transmitted the complainant's submission of May 29, 2023, for the parties' hearing.

10. In a statement dated September 19, 2023, the respondent answered the questions posed by the data protection authority and summarized that the complainant's statements in her submission of May 29, 2023, are often incomprehensible and redundant. The respondent refers to its statements of April 16, 2021, and March 1, 2023, and clarifies that the different treatment of suspected toll evasion cases and all other passages has already been explained in detail, whereby in suspected toll evasion cases—in addition to the passage data recorded at each passage—image data is stored and used to determine the proper payment of the toll and to pursue toll evasion in accordance with § 19a BStMG. Finally, the complainant commented on the storage duration relevant to the proceedings and submitted an additional statement regarding the fundamental right to data protection of legal entities. Since the recording of passage data cannot indirectly lead to the identification of a natural person behind it by the respondent, the GDPR is not applicable in this context.

11. By submission dated October 4, 2023, the respondent further stated that the complainant, as a legal entity, is not actively legitimized under § 24 DSG and cited the recent BVwG ruling of September 19, 2023, GZ: W298 2261568-1/16E. For this reason, the respondent requests that the data protection authority dismiss the complaint due to lack of active legitimacy. All other arguments and requests made remain unaffected.

12. By submission dated February 8, 2024, the complainant requested the data protection authority to provide information on the status of the proceedings.

13. By letter dated February 19, 2024, the data protection authority transmitted the submissions of the respondent dated September 19, 2023, and October 4, 2023, for the parties' hearing.

14. By submission dated March 7, 2024, the complainant submitted a counter-statement and initially referred to her previous submissions. Furthermore, the complainant summarized that she merely wishes to demonstrate with the present complaint that it is technically implemented that a positive passage leads to the deletion of the image material. If the respondent claims that the complainant repeatedly insinuates that the passages are stored for billing purposes, this is factually incorrect. Rather, the complainant has elaborated in her statement of May 20, 2023, that the individual passage has no billing relevance, as a fixed amount is paid in advance. If the respondent claims that it is factually incorrect that movement profiles of vehicles can be created, it should be noted that, for example, based on the passages, it can be traced on which side of the respective toll route a vehicle usually stands during the day or overnight. It should be noted that legal entities also have a legitimate interest in keeping the movement data of their vehicles confidential. The respondent cannot deny that a vehicle owned by the complainant can move. It does not matter whether the legal entity can physically move. The respondent's attempt to deny the complainant's active legitimacy would result in legal entities being "fair game" for data protection violations. However, out of pure caution, Dr. Arnold A**, as managing director of the complainant and owner of several (private) vehicles, joins the proceedings as a complainant and reserves the right to initiate a new proceeding with his private vehicles.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent has violated the complainant's right to confidentiality by unlawfully storing the complainant's passage data in connection with the route toll. However, it must first be examined whether the complainant, as a legal entity, is entitled to file a complaint.

C. Findings of Facts

1. The respondent is the operator of the high-ranking road network in Austria, whereby it employs technical facilities for automated authorization control for the purpose of toll collection, toll supervision, and the prosecution of toll evasion.

2. The appellant is a limited liability company, registered in the commercial register under FN *3**99*t with its registered office in M**. It holds the business license for the trade business, for the manufacture of pharmaceuticals and poisons and their wholesale, as well as the production of cosmetic products.

Evaluation of Evidence: These findings arise on one hand from the undisputed submissions of the appellant and on the other hand from an official inspection of the commercial register (conducted on September 24, 2024) and the GISA (conducted on February 23, 2024).

3. At the time of the complaint, the appellant operated a vehicle with the license plate AT Ü**4*X, which is registered to it.

4. The appellant had a valid annual vignette and a route toll annual card for the vehicle with the license plate AT Ü**4*X from January 6, 2020, to January 5, 2021.

5. The respondent recorded the license plate of the vehicle with the license plate AT Ü**4*X several times during an automated control of the digital route toll and documented the passage data (which includes: vehicle registration number, registration state, location, date and time of passing the toll station and toll road, type of ticket) on a time card. This time card appeared as follows at the time of the complaint:

[Note from the editor: The time card reproduced here as a facsimile (graphic file) with the indicated data cannot be pseudonymized with reasonable effort and has therefore been removed.]

Evaluation of Evidence: The findings arise from the consistent and thus undisputed submissions of the parties to the proceedings as well as the submitted documents.

6. As a result of the present complaint and the ongoing proceedings before the Data Protection Authority, the data in question concerning the appellant is still stored at the time of the decision. This is done for documentation purposes and to safeguard legal claims in the proceedings and not for the purpose of processing the route toll. The passage data in question concerning the appellant has already been deleted from the route toll systems.

Evaluation of Evidence: These findings arise from the undisputed supplementary statement of the respondent dated March 1, 2023.

7. In principle, passage data is stored by the respondent for one year from the toll station passage.

Evaluation of Evidence: This finding arises from the undisputed supplementary statement of the respondent dated September 19, 2023.

8. In principle, the route toll fee can be paid in several ways, each of which affects the necessary technical facilities and functionality. Furthermore, there was a change in the system of digital route tolls in September 2020. The payment at the toll station is as follows:

Evaluation of Evidence: These findings regarding the payment of the route toll arise from the undisputed supplementary statement of the respondent dated March 1, 2023.

9. The respondent stores the passage data primarily for the purposes of combating fraud and for proof in the case of complaints. There is no storage for billing purposes. A misreading of the vehicle registration number, where an automatic processing occurs erroneously, can only be traced if the passage data has been collected. Furthermore, there may be incorrect assignments of passages to a graphically very similar registration number, as the automated recognition of the vehicle registration number is, due to technological reasons, never 100% successful because of similar characters. In such cases, the respondent receives (justified) complaints, which the respondent must address just as it does with the numerous cases of unjustified complaints.

For toll annual passes, two types of fraud cases are conceivable: The result of the license plate check can be "overruled" with the physical annual pass at the toll booth, whereby in this case, the possibility of fraud exists through the further processing of the annual pass or the barcode. Furthermore, the respondent also repeatedly encounters internal fraud cases, where employees "overrule" the result of the license plate check. The aim of these fraud cases is to keep the toll amount for themselves or to allow known persons without a valid ticket to pass. A review of these cases necessarily occurs through the stored passage data.

Assessment of evidence: The findings regarding the processing purposes arise from the undisputed and coherent statement of the respondent dated September 19, 2023.

D. Legally, it follows:

D.1. Regarding the standing of the complainant

The complainant is a legal entity in the form of a limited liability company based in Austria. The respondent cites in the submission dated October 4, 2023, the BVwG ruling from September 19, 2023, GZ: W298 2261568-1/16E, which states that legal entities do not have active standing to file data protection complaints. Therefore, the present complaint should be dismissed.

In the complaint case against this BVwG ruling, the Constitutional Court (VfGH) states in its ruling dated March 12, 2024, GZ: E 3436/2023-16, that it has no doubt that the fundamental rights provisions in § 1 DSG cover not only natural persons but also legal entities as bearers of fundamental rights (e.g., VfSlg. 19.673/2012). The GDPR has not changed this. However, a separate question is whether a legal entity can file a complaint with the data protection authority due to a violation of its right to the confidentiality of personal data according to § 1 Abs. 1 DSG and furthermore whether and under what conditions a legal entity can assert a violation of its right to information, rectification, or deletion of personal data according to § 1 Abs. 3 DSG - in the absence of corresponding implementing

regulations in the Data Protection Act - before the data protection authority.

However, the VfGH was able to leave this question open in the complaint case because the data protection authority is in no case competent to decide on complaints related to publications ("investor warnings") according to § 92 Abs. 11 WAG fourth sentence 2018 (see Rz 27 and Rz 28 in the ruling dated March 12, 2024, GZ: E 3436/2023-16).

The data protection authority has previously held the view that legal entities, just like natural persons, can rely on § 1 DSG and that this domestically structured fundamental rights protection is also in accordance with the GDPR.

The question of whether legal entities can invoke the fundamental right to data protection is - as the VfGH also stated in its ruling dated March 12, 2024 - to be distinguished from the question of whether the statutory provisions of the DSG - particularly § 24 - apply to legal entities.

According to § 4 Abs. 1 DSG, the provisions of the GDPR and the DSG apply to the wholly or partially automated processing of personal data of natural persons as well as to the non-automated processing of personal data of natural persons that are stored or are to be stored in a filing system.

According to the will of the legislator, the statutory provisions of the DSG, including the complaint under § 24 DSG, are therefore limited to the protection of natural persons. However, the data protection authority has already stated multiple times that § 1 DSG also protects legal entities.

An interpretation of the statutory provisions - particularly §§ 4 and 24 DSG - in such a way as to grant only natural persons the opportunity to file a complaint before the data protection authority, while not allowing legal entities to do so, would attribute an unequal and thus unconstitutional content to these provisions in light of § 1 DSG. It cannot be assumed that the legislator intended to treat legal entities in the pursuit of their constitutionally guaranteed rights grossly disadvantageously compared to natural persons without a comprehensible reason (see the decision dated May 25, 2020, GZ: 2020-0.191.240, with references). That it is possible for the national legislator to provide for a purely national concept of the protection of personal data of legal entities has been affirmed by the CJEU (see the judgment dated December 10, 2020, C-620/19 Rz 47), so that the aforementioned case law of the data protection authority is not in contradiction to this.

There is therefore no specific reason to set the level of legal protection for legal entities lower. This is supported by the wording of § 24 Abs. 1 DSG, where the right to complain is granted not only in the event of violations of the GDPR but also with regard to § 1 DSG. It is also significant that, in addition to natural and legal persons, associations of persons also fall under this fundamental rights protection. Following the aforementioned statements of the Federal Administrative Court, groups of persons with corporate forms without legal personality, as well as citizens' initiatives and homeowners' associations, would also have no fundamental rights protection, because the GDPR does not include these associations of persons within its scope (cf. Lachmayer in Knyrim, DatKomm Art. 1 GDPR Rz 85; see also Eberhard in Korinek/Holoubek et al § 1 DSG Rz 25 and Ennöckl, Privacy 145 ff; see also regarding the assertion of claims by associations of persons *ibid*, 147).

As a result, this means that legal entities – contrary to the statements of the Federal Administrative Court in its decision of September 19, 2023 – are entitled to lodge complaints to the extent of the rights granted to them by § 1 DSG. However, in order not to attribute an unconstitutional content of equality to § 1 DSG, the Data Protection Authority can only exercise its jurisdiction over legal entities to the same extent as it does for natural persons in similar circumstances. § 1 DSG cannot be interpreted in such a way that the Data Protection Authority is required to substantively address complaints from legal entities while not doing so for natural persons in the same situation. This would result in an unjustifiable preferential treatment of legal entities and thus attribute an unconstitutional content of equality to § 1 DSG.

It must therefore be stated that the complainant, as a legal entity, is generally actively entitled to file a complaint under § 24 DSG before the Data Protection Authority, provided that it alleges a violation of the rights guaranteed by § 1 DSG, but only to the extent that this would also be possible for a natural

person.

In other words: The assertion of subjective rights by a legal entity is limited to the rights stipulated in § 1 DSG (confidentiality, information, deletion, correction). The additional rights stipulated in the GDPR (such as objection, restriction of processing, etc.) do not apply to legal entities.

In the present case, the complainant is thus actively entitled to file a complaint in accordance with § 1 DSG in conjunction with § 24 DSG with the Data Protection Authority as the competent supervisory authority.

D.2. Fundamental Right to Confidentiality

§ 1 DSG stipulates the fundamental right to confidentiality, according to which everyone, particularly with regard to the respect for their private and family life, has a claim to the confidentiality of personal data concerning them, provided that there is a legitimate interest in doing so. However, the fundamental right to data protection does not apply absolutely and may be restricted by certain permissible interventions.

According to § 1 Abs. 2 DSG, restrictions on the claim to confidentiality, as long as the use of personal data does not occur in the vital interest of the data subject or with their consent, are only permissible to safeguard overriding legitimate interests of another party, whereby interventions by a state authority may only occur based on laws that are necessary for the reasons stated in Art. 8 Abs. 2 ECHR.

D.3. Vehicle License Plates as Personal Data

With regard to vehicle license plates, the Data Protection Authority assumes that these are personal data within the meaning of Art. 4 No. 1 GDPR, as the registered owner can be identified through the license plate by means of a request under § 47 Abs. 2a KFG 1967 using proportionate means.

Using a request according to § 47 Abs. 2a KFG 1967, only the registered owner and not the vehicle driver can be determined. In the specific case, through the use of the vehicle with the license plate number AT Ü**4*X, the complainant is identifiable as the registered owner and thus as a legal entity.

D.4. Legal Basis

In terms of procedure, restrictions on the claim to confidentiality are only permissible in the presence of a qualified legal basis, as the respondent is a "state authority" within the meaning of § 1 Abs. 2 DSG (responsible for the public sector) (cf. § 6 ASFINAG Authorization Act 1997, according to which the respondent has been authorized to collect tolls).

A legal basis in the sense of § 1 Abs. 2 DSG regarding the processing (storage) of passage data can be found in the Federal Roads Toll Act 2002 – BStMG:

Relevant provisions of the Federal Act on the Collection of Tolls on Federal Roads (Federal Roads Toll Act 2002 – BStMG)

§ 14 BStMG and the Toll Regulation

The payment of the digital distance toll is carried out in accordance with the provisions approved under § 14 BStMG regarding the use of toll routes ("Toll Regulation").

§ 16a BStMG regulates data processing:

(1) The Autobahn and Expressway Financing Corporation is authorized to process personal data required for toll collection, toll supervision, and the prosecution of toll evasion using automated means.
(2) The Autobahn and Expressway Financing Corporation may process the following data within the scope of distance-dependent tolls:

1. Data about devices for electronic payment of distance-dependent tolls;
2. Data about vehicles whose use on federal roads is subject to distance-dependent tolls;
3. Contact, communication, payment, transaction, and billing data;
4. Data related to interoperable toll systems;
5. Data about cases of toll evasion (including suspected cases);
6. Data stored in accordance with § 19a (3);

7. Data obtained in accordance with §§ 30 and 30a (2).

(3) The Autobahn and Expressway Financing Corporation may process the following data within the scope of time-dependent tolls and route tolls (§ 32 (1)):

1. Data about vehicles that have a digital vignette or a digital route toll authorization;
2. Contact, communication, payment, and billing data;
3. Transaction data for route tolls;
4. Data about cases of toll evasion (including suspected cases);
5. Data stored in accordance with § 19a (3);
6. Data obtained in accordance with §§ 30 and 30a (2).

(4) No later than three years after payment of the replacement toll or after the conclusion of the administrative penalty proceedings, registration data obtained through automated retrievals via the National Contact Point in accordance with § 30a (2) must be deleted in a non-retraceable manner. This does not apply as long as legal proceedings regarding tolls, replacement tolls, or administrative penalties or proceedings for the enforcement of the administrative penalty are pending.

§ 19a BStMG regulates automatic monitoring:

(1) The Autobahn and Expressway Financing Corporation may use technical facilities to determine the proper payment of tolls and to prosecute toll evasion, which particularly enable the recording of vehicle type, number of axles, vehicle windshield, vehicle driver, license plate, adhesive vignette, location, and time of road use. The use of imaging technical facilities to determine the proper payment of time-dependent tolls must occur at regularly changing toll sections, whereby such use may occur multiple times a year at each toll section.

(2) Image data and derived license plate and control data that pertain to cases of proven proper payment of tolls must be deleted immediately in a non-retraceable manner. Image data documenting cases of toll evasion (including suspected cases) may be retained.

Toll system stored, but may only be processed for the purposes of toll collection, the request for payment of a replacement toll, and the prosecution of toll evasion.

(3) Data obtained from automatic monitoring of vehicles (license plates and technical vehicle characteristics) and information data from automation-supported queries in accordance with § 20a para. 2 regarding vehicles for which it is not clearly identifiable what type of toll payment (§§ 2 and 32) they are subject to may also be stored in the toll system. The storage of this data may only occur in pseudonymized form and for the purpose of minimizing error detection in automation-supported future vehicle captures within the framework of automatic monitoring. The storage must be carried out in a manner that does not allow conclusions to be drawn about the time and place of data capture. This data must be deleted in a non-retraceable manner no later than at the end of the year following the year of the last capture. The storage of image data for this purpose is not permitted.

(4) No later than three years after the collection of the toll, after payment of the replacement toll, or after the conclusion of the administrative penalty proceedings, image data and derived license plate and control data that document cases of toll evasion must be deleted in a non-retraceable manner from the toll system. This does not apply as long as judicial proceedings regarding tolls, replacement tolls, or administrative penalties are pending.”

§ 32 para. 2 BStMG regulates automatic monitoring:

(2) The detailed provisions regarding the amount of fees for single trips and multiple trip tickets as well as the type and conditions of toll payment for the use of the toll sections mentioned in § 10 para. 2 (route toll) are to be established in the toll regulation. They must ensure the payment of the toll without the use of electronic devices. The toll processing can also be carried out by registering the vehicle's license plate in the toll system of the Autobahn and Expressway Financing Joint Stock Company.

D.5. Requirements for a legal basis

The constant case law of the Constitutional Court regarding the quality of an intervention norm in the sense of § 1 para. 2 DSG indicates that a legal basis must be sufficiently precise, i.e., foreseeable for everyone, and must also regulate under what conditions the collection or use of personal data for the performance of specific administrative tasks is permitted (see, most recently, the findings of December 11, 2019, G 72/2019 et al., and December 12, 2019, G 164/2019 et al.). The respective legislator must

therefore provide a material-specific regulation in accordance with the provisions of § 1 para. 2 DSG, which specifies and limits the cases of permissible interventions in the fundamental right to data protection (VfSlg 18,643/2008).

D.6. Result

§ 16a para. 1 BStMG entitles the respondent to process the personal data necessary for toll collection, toll supervision, and the prosecution of toll evasion in an automation-supported manner.

§ 16a para. 3 BStMG further stipulates that the respondent may process, among other things, transaction data within the scope of route toll (see Z 3 leg. cit.). A legal basis in the sense of § 1 para. 2 DSG is thus present.

In conclusion, it can be stated that the storage of passage data is carried out in accordance with legal requirements. The legal basis is sufficiently precise and regulates the conditions under which data processing (and thus an intervention in the fundamental right to data protection) is to be permitted. The cases of permissible data processing are also sufficiently specified and limited by the maximum permissible storage durations.

This consideration also corresponds to the case law of the Administrative Court, according to which it is sufficient if the task to be performed is sufficiently described in the legal basis and the data processing serves the purpose of task fulfillment (see the ruling of the VwGH of December 21, 2023, Ro 2021/04/0010).

The processing is carried out in accordance with the principle of data minimization, appropriately and significantly for the legal purpose, and is limited to the necessary extent for the purposes of processing. Namely, only as long as necessary for the processing of the route toll, whereby fraud prevention and the handling of complaints make immediate deletion of the passage data impossible. The storage of passage data for one year from the toll station passage is appropriate for the purposes of fraud prevention and complaints. However, storage for billing purposes does not occur – as established.

The respondent is therefore to be agreed with in conclusion that the collection and storage of passage data for electronic toll processing is legally permissible.

A decision was made accordingly.